Chivi Rural District Council (Traffic, Clamping and Tow-away) By-laws, 2025

ARRANGEMENT OF SECTIONS

Section

1. Title.
2. Application
3. Interpretation.
4. Parking.
5. Motor-vehicle not to project beyond the limits of parking-place.
6. Parking passenger motor-vehicle picking up and setting down of passengers.
7. Parking on sidewalk or foot-path.
8. Visibility obstruction.
9. Parking fee and parking disc.
10. Taxi-cabs plying for hire.
11. Motor omnibuses.
12. Terminus discs.
13. Animal drawn vehicles.
14. Heavy vehicles within township or residential area.
15. Wheel clamping and tow away.
16. Unclaimed vehicles.
17. Designation.
18. Offences and penalties.

FIRST SCHEDULE: Fees.

SECOND SCHEDULE: Penalties.

IT is hereby notified that the Minister responsible for Local Government has, in terms of section 90 of the Rural District Councils Act [*Chapter 29:13*], made the following by-laws:—

Title

1. These by-laws may be cited as the Chivi Rural District Council (Traffic, Clamping and Tow-away) By-laws, 2025.

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Application

2. These by-laws shall apply to the Chivi Rural District Council area.

Interpretation

3. In these by-laws—

"authorised person" means—

(a) Council staff members under the relevant department deployed at each designated area to enforce these by-laws; and

(b) in the event of any resistance to the persons mentioned in paragraph (a) a member of the Zimbabwe Republic Police;

"clamp" means to immobilise a motor-vehicle by means of a wheel clamp;

"Council" means the Chivi Rural District Council;

"designated area" means—

(a) a parking place; or

(b) any suitable site established as a bus terminus by the Council.

"driver" means the operator of a motor vehicle;

"heavy vehicle" means a motor vehicle exceeding 4 600 kg net mass;

"motor-vehicle" means any vehicle propelled by mechanical or electrical power and intended or adapted for use or capable of being used, on roads, but does not include the following—

a vehicle propelled by mechanical power and specially designed and constructed (and not merely adapted) for the use of persons suffering from some physical defect or disability, and solely by such person; and an auto-cycle;

"parking fee" means a fee paid to Council—

(a) each time a passenger motor-vehicle stops to pick up and drop off passengers at a designated area;

(b) each time a motor vehicle uses a designated parking place;

"parking-place" means a place designated by prescribed parking lines so placed on the road surface as to indicate the limits thereof;

"passenger motor-vehicle" means any motor-vehicle that has been registered to carry people for a fee and includes but is not limited to—

(a) a conventional bus; and

(b) a minibus;

"rank disc" means a disc issued by the Council in terms of section 12 authorising its holder to use the ranks or terminus designated by the Council;

"section of the road" means the portion of the road lying between two other roads which join it at an angle;

"secure compound" means any area designated under section 17;

"taxicab" means a motor-vehicle for hire by a single passenger or small group of passengers;

"towing away" means the removal by an authorised person of motor vehicle that is parked or stationary in violation of these by-laws;

"towing away and storage charges" means charges prescribed by council;

"traffic ticket" means a notice specifying that an offence against these by-laws has been committed and that is given to the occupant of the motor vehicle or securely affixed to a motor vehicle in a conspicuous position;

"wheel clamp" means a device used to immobilise a motor vehicle that is designed to surround a vehicle wheel in such a manner as to prevent the removal of the wheel and the clamp;

"vehicle" means any vehicle not self-propelled by mechanical, electrical or other power, and includes an auto-cycle,

a pedal-cycle, a tricycle, a handcart or any other contrivance which is propelled by or drawn by human power or by any animal, whether such animal is ridden, led or driven.

Parking

4. (1) Where parking-places have been demarcated in any section of the road, no person shall park a motor-vehicle or a vehicle in any part of that section otherwise than in a parking place.

(2) Except in a case of emergency or in compliance with the direction of a police officer, no person shall park a motor-vehicle or a vehicle—

(a) so as to obstruct the entrance to, or exit from a service lane; or

(b) upon a road so as to obstruct the entrance to, or exit from a garage or driveway.

(3) No person shall, cause or permit to be parked any vehicle, in any road, service lane or parking-place designated for passenger motor-vehicles or taxicab, as the case may be.

Motor-vehicle not to project beyond the limits of parking-place

5. (1) No person shall park a motor-vehicle in a parking-place in such a manner that any part of the motor vehicle or any part of the load thereon extends beyond the limits of the parking-place.

(2) For the purposes of this section "motor-vehicle" includes any trailer or caravan drawn by a motor-vehicle.

Parking passenger motor-vehicle picking up and setting down of passengers

6. No driver of a passenger motor-vehicle plying for hire shall stop to pick up or set down passengers except at a designated area.

Parking on sidewalk or foot-path

7. Except for the purpose of crossing a sidewalk or foot-path forming part of a road and set aside for the use of pedestrians, no person shall drive or park a motor-vehicle upon such sidewalk or foot-path.

Visibility obstruction

8. (1) No owner or occupier of any land adjacent to any road shall erect a wall or fence, or place or plant, any tree, shrub or hedge in such a manner as to obstruct the visibility of traffic using such road.

(2) Where in the opinion of an authorised person, an obstruction to the visibility of traffic has been caused, the authorised person shall, by written notice served on the owner or occupier of the land concerned, require him or her to take measures to remove such obstruction, within seven days from the date on which the owner or occupier received the notice.

(3) If, after receiving a notice made in terms of subsection (2), the owner or occupier refuses or fails to remove the obstruction, Council shall enter upon the land and remove such obstruction at the owner's expense.

Parking fee and parking disc

9. (1) Every owner or driver of a motor-vehicle shall pay a parking fee specified in the First Schedule.

(2) Upon payment of the parking fee, the owner or driver of a motor-vehicle shall be issued a parking disc which he or she shall display on the passenger motor-vehicle.

Taxi cabs plying for hire

10. No person shall operate an unregistered vehicle as a taxi cab within council area.

Motor omnibuses

11. (1) No person shall—

(a) cause or permit a motor omnibus to stop for the purpose of picking up or setting down passengers, at any place other than a bus stop or a terminus; or

(b) cause or permit passengers or goods to be picked up by, or set down from a vehicle within seven metres of an intersection.

(2) No omnibus may use a route within the Council area unless that route has been designated as a route for such purposes.

(3) Any person who wishes to have a route designated for the purpose of use by motor omnibuses shall apply to the council for this purpose.

(4) All motor omnibuses, passing through council area on long routes are required to stop at designated Council bus terminuses.

Terminus discs

12. (1) All passenger motor-vehicles operating in council area shall, upon payment of the fee specified in the First Schedule.

(2) Terminus discs issued in terms of subsection (1) shall authorise the holder to use the omnibus terminus.

(3) Each disc referred to in subsection (1) shall be valid for four months.

Animal drawn vehicles

13. No person shall cause or permit—

(a) an animal drawn vehicle to be driven within the council area except with written permission from council;

(b) an animal released from an animal drawn vehicle to wander except in the approved animal parking zone.

Heavy vehicles within township or residential area

14. (1) Heavy vehicles and buses shall use only designated routes for transporting, picking up and delivering goods.

(2) No driver of a vehicle shall park a heavy vehicle in the CBD or residential areas without Council permission.

(3) Any person found in contravention of subsection (2) shall be liable to a fine specified in the Second Schedule.

Wheel clamping and towing away

15. (1) An authorised person may, if he or she has reason to believe that a violation of the traffic by-laws has been committed—

(a) immobilise or cause such motor vehicle to be immobilised by way of a wheel clamp after a period of at least one (1) hour has lapsed; and if the vehicle has not been claimed after two (2) hours have lapsed and the relevant charges incidental thereto are not paid, the authorised officer shall clamp the vehicle;

(b) if the motor vehicle has not been claimed and the relevant charges incidental thereto not paid, subsequently remove and tow away the motor vehicle to a secure compound after a period of at least four hours has lapsed:

Provided that motor vehicle shall be clamped simultaneously with the issuance of a traffic ticket for the violation of the by-laws. The traffic ticket shall be placed in a secure conspicuous position on the motor vehicle;

(c) if a motor vehicle has been clamped towards the end of working hours and has not been claimed, the authorised officer shall tow away the motor vehicle at the end of the working day to a secure compound.

(2) An authorised person—

(a) may remove or cause to be removed, any motor vehicle immobilised in terms of section 4 of these by-laws to a secure compound; or

(b) shall remove or cause to be removed with immediate effect, any motor vehicle that is obstructing the flow of traffic, if the owner of the vehicle is not available.

(3) A motor vehicle removed to a secure compound shall be released upon payment by the owner of such motor vehicle of—

(a) the fine prescribed by Council; and

(b) wheel clamping, tow away and storage charges specified in the Second Schedule.

Unclaimed vehicles

16. (1) Council shall publish a notice in the newspaper circulating within Council, a list of vehicles immobilised and advise the owners to claim the vehicles within a period of thirty days.

(2) In addition to the provisions of subsection (1), the Council shall send a notice to every owner of the motor vehicle that remains unclaimed after the publication of the notice advising the owner to claim the vehicle within a further period of thirty days.

(3) Council shall sell by public auction any vehicle that remains unclaimed 90 days after the dispatch of the notice referred to in subsection (2).

(4) Council shall deduct the expenses incurred from the proceeds of the sale of a motor vehicle and any balance shall be paid to the owner thirty days from the date on which the owner submits a written request to the Council for such payment.

(5) Council shall operate a special account into which money realised from the sale of unclaimed vehicles shall be deposited.

(6) Any money not claimed within one year after the sale of the motor vehicle shall be—

(a) used by council in making improvements or new developments for vehicular traffic that is parking area or commuter waiting area in the area the crime has been committed; or

(b) used for acquisition of traffic enforcement devices that are meant to deter the traffic population from committing offences stated in these by-laws; or

(c) used for awareness campaign programmes related to traffic enforcements.

Designation

17. Council shall publish in any newspaper circulating within the council-controlled area or electronically —

(a) any place designated as a secure compound; and

(b) particulars of every authorised person including—

(i) type of uniform used during the working hours by the authorised person;

(ii) type of badge if available;

(iii) the nature of the identity cards to be possessed by any authorised person;

(iv) any such particulars the Council may deem necessary;

Offences and penalties

18. (1) No person shall—

(a) attempt to obstruct, an authorised person in the exercise of his or her duties under these laws; or

(b) attempt to remove, remove or cause to be removed a wheel clamp; or

(c) attempt to remove or cause to be removed a motor vehicle from the secure compound.

(2) Any person found in contravention of these by-laws shall be liable to a fine specified in the Second Schedule.

FIRST SCHEDULE: FEES

Description	Section	Amount (USD)
Prepaid parking fees per hour	9	0,00
Monthly disc per bay	9	0,00
Parking fees for designated parking lots per day	9	0,00
Application to use animal drawn vehicles in council area	13	0,00
Clamping fees	14	0,00
Tow away fees: small vehicle Heavy vehicle	14	20,00 50,00
Application to park heavy vehicle in Township area and residential area	14	0,00
Overnight storage fees: Light vehicles	15	10,00
Overnight storage fees: Heavy vehicles	15	20,00
Tow away fees: Heavy Vehicles	15	50,00
Commuter omnibus operators permit application fee	11	0,00 per day
buses operators permit fee	11	0,00 per day
Animal drawn vehicles permit fee	13	0,00
Terminus disks (Per quarter)	12	0,00
Operator's licence: Commuter omnibuses	11	0,00
Operator's licence: Taxi and Class 4 Driving School	12	200,00
Operator's licence: Class 2 Driving School	12	0,00
Operator's licence: Class 1 Driving School	12	0,00
Operator's licence: Lorries in the sand extraction sector	12	0,00
Operator's licence: Heavy Trucks	12	0,00
Bus Terminus gate toll (per entry)–Buses	12	8,00 per entry
Bus Terminus gate toll (per entry)–commuter omnibus	12	4,00 per entry

SECOND SCHEDULE: (*Section 18*)

PENALTIES

Description	Section	Amount (USD)
Failure to display prepaid parking disk	9	0,00
Park a motor vehicle other than in a parking place	4	20,00
Park a vehicle in a manner that obstructs entrance to a service lane, garage or drive way	4	20,00
Park a motor vehicle in such a manner that it extends beyond the limit of the parking place	5	20,00
Park a pedal cycle other than in prescribed parking area	4	0,00
Attempt to obstruct or cause to obstruct an authorised person to exercise duties in terms of these by-laws	18	20,00
Stop to pick up or set down passengers at any undesignated area	6	30,00
Stop to pick up or set down passengers and goods at any undesignated area	11	30,00
Operating an unregistered taxi	10	40,00
Using an undesignated route and stopping at any place other than a designated Council terminus	11(2) and 11(4)	20,00
Using animal drawn vehicles within council area without a permit	13	0,00
Failure to use designated routes for transporting, picking up and delivering of goods	14(1)	20,00
Park heavy vehicles in residential areas and the township area without council permission	14(2)	20,00